

Tentative Rulings for June 5, 2026 Department 10

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 10 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 888 5460**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2513565	JAFARI VS CILING	MOTION FOR SALE OF DWELLING

Tentative Ruling:

The Court **GRANTS** the Motion for Sale of Dwelling. The Court notes that Defendants filed Supplemental Replies on June 3, 2026 and June 4, 2026. The Court exercises its discretion not to consider these late filings. Cal Rules of Court, rule 3.1300(d). This matter has already been continued and defendants had the opportunity to and did file an Opposition.

Statutory procedure

CCP §§ 704.750, 704.760 contemplates an application and Order to Show Cause procedure. An OSC was not issued here. According to Plaintiff, nonetheless, this motion is the legal equivalent. This Court has jurisdiction over Anke who made a general appearance in this action on April 1, 2026. This motion is presented to this Court as a court of general jurisdiction and equity with jurisdiction over the subject property and the property owner. This case was filed on December 19, 2025 as a creditor's suit to pursue assets of the judgment debtors of the LA judgment. Those judgment debtors include Sammy Ciling ("Sammy") and his wife, Anke. Although Sammy and Anke are married, Anke is the sole title holder of the subject property.

The typical procedure is a two-step process: (1) an application for sale of dwelling and (2) post-application for sale of dwelling.

Plaintiff argues that the procedure is inapplicable in this case because this is a noticed motion that is part of a pre-existing case and the substance of the statutory procedure has been satisfied. The Court agrees; there is no prejudice in proceeding with this noticed motion as the aspects of an OSC are addressed.

No Homestead Exemption

At the OSC, the Court must determine whether a homestead exemption applies under CCP §704.780. Where Judgment Creditor's application sets forth an amount of exemption, the burden is on Judgment Debtor to establish the inapplicability of that exemption amount. (CCP §704.780(a)(2).)

The Court must then decide as to (1) whether the property is exempt; (2) if so, the amount of the exemption and the FMV of the property. (CCP §704.780(b).) If the Court determines that the dwelling is exempt, the Court shall determine the amount of the homestead exemption and the fair market value of the dwelling. (CCP §704.780(b).) The Court must then order sale of the dwelling subject to the exemption, unless it finds that the sale of the dwelling would not produce a sufficient bid to satisfy the homestead exemption and any outstanding liens or encumbrances, including the judgment of Judgment Creditor. (Id.) If there are insufficient bids, the dwelling shall be

released and not subject to a subsequent order for application of sale by the same judgment creditor for one year. (CCP §704.800(a).)

If the court determines that the dwelling is not exempt, the court shall make an order for sale of the property in the manner provided in Article 6 (commencing with Section 701.510) of Chapter 3. (CCP §704.780(b).)

Here, The Riverside County Recorder's Office reflects a claim of homestead exemption by Anke, but that was expunged and barred in the future under the judgment (exhibit 10) of August 12, 2025. There is a claim of Ultim8 Equities LLC, as Assignee, of a Second Trust Deed in the amount of \$175,000 and a Third Trust Deed in the amount of \$450,000. However, those Trust Deeds have been extinguished by the judgment of August 12, 2025 (Exhibit 11). The LA Judgment (the underlying judgment) is not based on a consumer debt. The LA judgment was originally in the amount of \$2,640,584.84, but has been increased to \$4,224,731.88 (Exhibit 12, December 19, 2025 writ of execution).

Since there is no homestead exemption, there is no need to provide fair market value. The statute (CCP § 704.780(b)) provides:

(b) The court shall determine whether the dwelling is exempt. if the court determines that the dwelling is exempt, the court shall determine the amount of the homestead exemption and the fair market value of the dwelling. the court shall make an order for sale of the dwelling subject to the homestead exemption, unless the court determines that the sale of the dwelling would not be likely to produce a bid sufficient to satisfy any part of the amount due on the judgment pursuant to section 704.800. The order for sale of the dwelling subject to the homestead exemption shall specify the amount of the proceeds of the sale that is to be distributed to each person having a lien or encumbrance on the dwelling and shall include the name and address of each such person. subject to the provisions of this article, the sale is governed by article 6 (commencing with section 701.510) of Chapter 3. If the court determines that the dwelling is not exempt, the court shall make an order for sale of the property in the manner provided in article 6 (commencing with section 701.510) of Chapter 3.

(CCP § 704.080(b).) [emphasis added]